Soapstone Cluster Association

Board of Directors Meeting Minutes

Wednesday, August 12, 2026
6:33 PM – Microsoft Teams

Board Members Present

- Sebila Raubacher, President
- Jeff Davis, Treasurer

Board Member Absent

- Adam Smith, Secretary

Community Members/Guests Participating

- Debra Mayer
- Michelle Bowen
- Patty R.

A quorum was established with two of the three Board members present.

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1. Call to Order

President Sebila Raubacher called the meeting to order at approximately **6:33 PM** and confirmed that a quorum was present.

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2. Approval of Prior Meeting Minutes

The Board considered the minutes from the **June 26, 2026 Board of Directors meeting**.

Motion: A motion was made to approve the June 26, 2026 meeting minutes as presented.
Second: Jeff seconded the motion.
Vote: Approved unanimously by the Board members present.

The President noted that the approved minutes had been made available to the membership through the Cluster website and newsletter.

3. President’s Updates

Trash Collection Schedule Change

The President reported that American Disposal is changing the Cluster's regular trash and recycling collection day from **Thursday to Friday**.

The transition schedule was reviewed:

- Thursday, August 13 – regular Thursday collection
- Thursday, August 20 and Friday, August 21 – transitional collection on both days
- Beginning thereafter, regular collection will occur on Fridays, with the next regular Friday collection on August 28

The Board discussed the importance of communicating the change through multiple channels because residents may not consistently receive or read Cluster emails. Printed notices have been prepared for distribution to households and mailboxes, and the change will also be posted to the Cluster Facebook page.

No service change related to Labor Day had been communicated by the trash contractor as of the meeting.

Residents were also reminded to place containers out near the scheduled collection time and to promptly return containers to their properties following collection in accordance with applicable Reston Association requirements.

Follow-up actions:

- Distribute printed trash schedule notices throughout the Cluster.
- Post the schedule change on the Cluster Facebook page.
- Monitor communications from American Disposal regarding any future holiday schedule changes.

4. Treasurer’s Financial Report

July Financial Position and Investments

The Treasurer presented the July financial update and reported that the Association remains in a generally sound position with respect to capital funds.

The Association currently has three certificates of deposit. One matures in November 2026, while two mature in February 2027; the February CDs are earning approximately **3.95%**. The Board may consider alternative investments consistent with its investment strategy as CDs mature, but no immediate changes are planned.

Annuity Dissolution

The Treasurer provided an update on the Association's former long-term annuity investment, which was liquidated earlier in 2026. The related tax payment has now been made.

The auditor is assisting the Association in determining the proper allocation of the proceeds between capital and operating funds. A general ledger adjustment will also be made to remove the deferred tax liability associated with the annuity from the Association's balance sheet.

Once those accounting entries are completed, the annuity matter should be fully closed.

Landscaping Budget

The Treasurer reported that the Association is realizing significant savings because the adopted FY27 budget had assumed continuation of the prior BrightView landscaping contract, while the subsequently selected Blake Landscapes contract is substantially less expensive.

The savings are approximately **$10,000 or more** for the year. Some of the savings have been used for additional landscaping work outside the regular maintenance contract, including:

- Removal of old railroad-tie material;
- Planting of a tree;
- Additional cutting and reduction of overgrown bushes; and
- Other landscaping work requested by residents, including vegetation interfering with sidewalks.

The Board expects some landscaping budget savings to remain available during the fiscal year.

Trash Contract

American Disposal has notified the Association of a contractual **3% rate increase effective September 1, 2026**. The increase was anticipated when the current budget was prepared.

Even with the increase, the Treasurer expects the Association's trash expense for the current fiscal year to remain approximately **$6,000 below the prior fiscal year** because of the contract renegotiation completed last year.

The Board also noted that the current contract contains protections regarding fuel surcharges.

Tree Maintenance

A significant portion of planned tree work was completed earlier in the fiscal year. Approximately **$10,000 remains in the tree maintenance budget**, which the Board intends to preserve as much as practicable for additional tree needs and potential storm-related work later in the year.

Legal and Professional Expenses

Legal and professional expenses are running higher than desired, primarily because of collection and delinquency matters.

5. Delinquency Report and Collection Procedures

The Treasurer reported that total outstanding homeowner delinquencies have increased to approximately **$23,000**, with approximately **75% of the balance more than 90 days past due**.

At the time of the meeting:

- 12 households had delinquent balances;
- 3 matters were already with legal counsel;
- 3 were approaching or ready for attorney referral; and
- 6 remained in reminder/early collection status.

The Board discussed the significant increase in delinquencies and agreed that collection of outstanding assessments is one of the Association's highest financial priorities.

Current Legal Collection Matters

The President reported that legal counsel has provided a memorandum outlining the process, estimated costs, and risks associated with pursuing foreclosure on one substantially delinquent account.

Estimated legal costs could be significant—approximately **$5,000 to $15,000** according to the information discussed at the meeting. Although legal expenses may ultimately be recoverable if collection is successful, the Association may have to advance those costs and faces the risk of not recovering all expenses if the foreclosure is unsuccessful.

No decision to authorize foreclosure was made during this meeting. The Board will review counsel's memorandum and evaluate the potential recovery against the Association's cash-flow exposure before deciding whether to proceed.

The President also reported that other seriously delinquent accounts are already being pursued through counsel and that an additional account has received an acceleration notice providing 15 days to resolve the delinquency before attorney referral.

Revised Delinquency Procedure

The President presented the draft administrative delinquency procedure. The purpose of the procedure is to create a consistent internal process for implementing the requirements already contained in the Association's governing documents.

The current draft is approximately eight pages. The President and Debra Mayer agreed that it should be substantially shortened and that some provisions are repetitive.

The Board discussed a more disciplined collection timeline, including:

- A delinquency notice at approximately 31 days;
- A formal acceleration notice at approximately 60 days;
- Certified-mail requirements where applicable; and
- Referral to legal counsel following expiration of the required notice period.

The President acknowledged that the Association has not always followed these deadlines consistently in the past and stated that the Board intends to apply the collection schedule more consistently going forward.

The procedure is intended as an administrative Board procedure and **was not presented for a formal vote at this meeting**.

Once revised and finalized, the procedure will be distributed to homeowners and posted on the Association website so that owners understand the collection process.

Financial Impact of Delinquencies

Debra Mayer expressed concern regarding the magnitude of the delinquency rate and its effect on Association cash flow and financial stability.

The Board discussed:

- The effect of uncollected assessments on operating cash;
- The potential need to recognize some receivables as bad debt;
- The financial burden placed on homeowners who remain current;
- The potential cash-flow impact of advancing substantial legal expenses for foreclosure;
- Whether a dedicated or revolving mechanism for collection-related expenses should be considered; and
- The value of providing homeowners with an aggregate explanation of how delinquencies affect the Association's finances without identifying individual homeowners.

The Board agreed that the financial impact of delinquencies warrants further analysis.

The Board also discussed obtaining broader guidance from Reston Association or an independent resource regarding collection strategies used by other clusters and homeowners associations. The President noted that alternative law firms have previously been contacted, with limited success, and indicated that the Board will continue evaluating whether other legal or consulting resources could provide a more effective collection strategy.

Follow-up actions:

- Board members to review counsel's foreclosure memorandum and determine whether to authorize foreclosure.
- Revise and substantially shorten the delinquency procedure, incorporating comments received.
- Implement the required collection timetable more consistently.

- Obtain documentation from the management company confirming the 31-day delinquency notices it sends.
- Evaluate the cash-flow and budget impact of the current delinquency balance and potential foreclosure costs.
- Explore whether Reston Association can provide guidance, educational resources, consultants, or information regarding collection practices.
- Continue evaluating alternative legal resources for delinquency collection.
- Send remaining required delinquency notices by certified mail.
- Debra Mayer volunteered to obtain certified-mail forms and assist with mailing logistics.

6. Possible Bylaw Amendment – Late Fees

The Board discussed a future amendment to the Association's bylaws concerning delinquency late fees.

The current bylaws specify a **$15 late fee**. The Board believes the existing amount provides little incentive for timely payment and discussed increasing the fee, potentially to approximately **$50**, with a fee assessed for each month an account remains delinquent.

The Board also discussed whether it would be preferable for amended bylaw language to authorize the Board to establish the amount of the late fee rather than placing a specific dollar amount in the bylaws.

No final language or specific fee structure was adopted.

The Board reached consensus that it wants to **pursue an amendment to the bylaws addressing late fees** and intends to present proposed amendment language to the membership for a vote in conjunction with the next Annual Meeting rather than conducting a separate membership vote during the year.

Any proposed amendment will require legal review before being presented to the membership.

Follow-up actions:

- Locate and review prior legal advice regarding amendment of the late-fee provision.
- Develop proposed bylaw language.
- Obtain legal review of the proposed amendment.
- If appropriate following legal review, present the amendment to the membership for consideration at the Annual Meeting.

7. Glass Recycling

The President announced that the Association will begin a **glass recycling service on August 19, 2026**.

The Board negotiated a short-term arrangement running only through the end of the current fiscal year in **March 2027**. This allows the Association to evaluate the service without committing future Boards or future budgets to a long-term contract.

The community interest survey showed majority support among respondents for establishing the service.

Glass will be collected every other week from designated collection points within the Cluster. The collection containers will be covered.

Funding

The Board discussed how the service will be funded. Because the Association is realizing significant savings in the landscaping budget, the service can be funded during the current fiscal year without an additional assessment or increase in the approved overall budget.

Debra Mayer raised a question regarding the Board's authority under the governing documents to reallocate budgeted expenditures. The Board stated that it had previously reviewed the applicable spending/deviation authority and understood the expenditure to fall within the Board's authority. Debra indicated that she would send the Board the provision she had located describing a three-part standard for budget deviation.

If the service is to continue after March 2027, it will need to be considered as part of the next fiscal year's budget.

Decision: Glass recycling will begin August 19 and operate on a trial basis through the end of the current fiscal year. No separate formal motion was recorded during this meeting.

Follow-up actions:

- Distribute detailed glass recycling instructions and collection-location information to residents.
- Review the governing-document provision regarding budget deviation/spending authority.
- Evaluate participation, cost, and effectiveness of the service before preparing the next annual budget.

8. Drainage and Erosion Project

The President provided an update regarding the erosion/drainage area on Soft Wind Court.

A landscaping contractor submitted an approximately **$8,000 proposal** that included river rock, plantings, and other erosion-control improvements. The President declined the proposal because of the cost.

Fairfax County representatives have since reviewed the area because drainage from the site connects toward a nearby stream or drainage system. The Association will investigate whether County assistance or funding may be available for erosion-control improvements.

If outside funding is unavailable, the Board will need to explore a significantly less expensive approach and/or determine whether portions of the work could reasonably be accomplished through volunteer efforts.

Follow-up actions:

- Obtain the results of the County site review.
- Determine what applications or documentation are required for potential County assistance.
- Pursue available County funding or technical assistance before committing Association funds to a major project.

9. EV Charging Assessment

The President reported that the County's EV-charging consultant has completed an initial site visit.

The consultant reviewed the location of electrical transformers and possible locations where community EV charging infrastructure might be technically feasible.

A feasibility report is expected. The Board is not pursuing immediate installation at this time; the assessment is intended to provide information that this or a future Board can use if the membership wishes to consider EV charging.

Follow-up action: Await and review the consultant's feasibility report when received.

10. Window and Design Standards

The President provided an update on revisions to the Cluster's design standards.

The house-number standards and fence standards have already been updated with Reston Association. The next major item is the window standard.

The existing Cluster standards generally require homeowners replacing windows to submit an individual DRB application. The goal of the revised standard is to establish clear specifications that could allow homeowners to replace windows without individual DRB approval when the replacement complies with the approved Cluster standard.

The President has been working with Reston Association staff on an almost-final draft. The standards are being written around characteristics such as window size, configuration, and color rather than specific manufacturers or brands so that the requirements remain usable as products change over time.

Reston Association is expected to review the latest draft. Following that review, the draft will be distributed to Cluster homeowners for comment and then formally submitted to Reston Association/DRB for approval.

The Board also discussed opportunities to improve clarity elsewhere in the existing standards, including:

- Clarifying whether approved siding and trim colors must be paired according to the combinations shown in the standards;
- Clarifying treatment/color of soffits; and

- Generally eliminating ambiguous language without necessarily changing substantive requirements.

Follow-up actions:

- Complete Reston Association staff review of the draft window standards.
- Circulate the near-final draft to homeowners for review/comment.
- Submit the final proposed window standard through the DRB process.
- Consider minor clarifying revisions to other design-standard language.

11. Bamboo Management

The Board discussed the extensive bamboo growth within the Cluster.

The Board acknowledged that complete removal through a community volunteer workday is not realistic because of the size and density of the bamboo and the difficulty of disposing of the material.

The current strategy is therefore shifting toward **containment**, particularly preventing bamboo from spreading beyond its existing area or encroaching further onto neighboring Reston Association property.

A community workday is being considered for September. The purpose would be to cut back and contain the outer edges of the bamboo rather than attempt complete removal.

The Board expects that contractor assistance may ultimately be required for portions of the project.

Adam had previously been developing ideas for the bamboo effort but was unable to attend the meeting.

Follow-up actions:

- Obtain an update from Adam regarding the proposed bamboo plan.
- Plan a September volunteer workday focused on containment.
- Continue evaluating contractor assistance for work that cannot reasonably be performed by volunteers.

12. Community Ice Cream Social

The President announced that the Cluster will hold an **Ice Cream Social on Sunday, August 23, 2026**, the day before the start of school.

Printed flyers have been prepared and will be distributed together with the trash-service change notice.

An email announcement has also been sent.

Decision: Proceed with the August 23 Ice Cream Social.

13. Community Email Deliverability

During discussion of the Ice Cream Social and other community notices, residents reported that some recent Association emails had not been received or had arrived unusually late.

The President noted that HubSpot email open rates have declined substantially from previous levels, suggesting that messages may increasingly be filtered as spam or promotional email.

Because email delivery is uncertain, the Board will continue supplementing important electronic communications with printed notices when appropriate.

Follow-up actions:

- Investigate HubSpot email deliverability and filtering.
- Consider providing homeowners with instructions for adding the Association/HubSpot sending domain to their safe-sender list.
- Include updated email-delivery guidance in a future newsletter or community communication.

14. New Business – Animal Control Authorization

Debra Mayer raised a recent Reston Association communication concerning animal-control access to private Cluster property.

The discussion indicated that clusters must affirmatively enroll or authorize the applicable animal-control program so animal-control personnel can respond to incidents occurring on private Association property.

The Board agreed that Soapstone Cluster should participate, particularly given the Cluster's proximity to wooded areas and the frequency of wildlife.

Residents will need to be informed about the program and how to contact animal control once the applicable procedure is confirmed.

Decision: The Association will enroll in/authorize participation in the animal-control program. No separate formal motion was recorded.

Follow-up actions:

- Complete the required enrollment/authorization before the applicable deadline.
- Confirm the scope of the program and procedures for homeowner calls.
- Notify residents once enrollment and procedures are confirmed.

15. Additional Budget and Landscaping Discussion

Debra Mayer requested clarification regarding the savings being realized under the Blake Landscapes contract.

The Board explained that the FY27 budget was adopted before Blake was selected. The budget therefore reflected the substantially higher anticipated BrightView cost. Blake's contract was subsequently selected at a much lower annual price, creating the current-year savings.

The Board discussed that these savings are unique to the current budget structure. Any continuing new service, such as glass recycling, would need to be specifically considered when preparing the next fiscal year's budget rather than assuming the same excess landscaping appropriation would remain available.

The Blake contract includes an approximately **3% escalation provision for the next contract year**.

The Treasurer also reported that Blake previously attempted to add a fuel surcharge that was not authorized under the contract. The Association rejected the charge and required a corrected invoice.

Follow-up action: Continue reviewing vendor invoices against contract terms before authorizing payment.

16. Final Delinquency Administration Discussion

Before concluding, the Board returned briefly to administration of the delinquency procedure.

Debra Mayer volunteered to assist with certified-mail logistics for upcoming delinquency notices, including obtaining certified-mail forms.

The Board also discussed the importance of obtaining copies of the management company's 31-day delinquency notices so the Board can verify that required notices are actually being sent and maintain a complete tracking record.

The discussion further emphasized that when matters are referred to legal counsel, the Association should establish clearer expectations for reporting and status updates. Future collection counsel should be provided with defined expectations regarding communication, collection strategy, and reporting.

Follow-up actions:

- Obtain certified-mail materials for outstanding notices.
- Request copies of recent 31-day delinquency notices from the management company.
- Incorporate management-company responsibilities and attorney reporting expectations clearly into the revised delinquency procedure.
- Use the revised collection process as a framework when evaluating current or future collection counsel.

17. Adjournment

With no additional business raised, the President thanked attendees and concluded the meeting at approximately **7:32 PM**.

Summary of Motions and Board Decisions

Formal Motion

1. **Approval of June 26, 2026 Board Meeting Minutes** – Motion made, seconded, and approved unanimously by the Board members present.

Decisions/Consensus Recorded Without Separate Formal Motions

1. Proceed with glass recycling beginning August 19, 2026, on a trial basis through the end of the current fiscal year.
2. Pursue a future bylaw amendment addressing delinquency late fees and present proposed language to the membership in connection with the Annual Meeting, subject to legal review.
3. Hold a community Ice Cream Social on August 23, 2026.
4. Enroll the Association in the applicable animal-control authorization/program.
5. Shift the near-term bamboo strategy toward containment rather than attempting complete removal through volunteer labor.
6. Apply a more consistent and aggressive timetable to delinquent assessment collection.

Matters Explicitly Not Yet Decided

1. Whether to authorize foreclosure on the substantially delinquent account currently under legal review.
2. Final wording and amount/frequency of any revised late fee.
3. Final adoption/approval of the revised delinquency procedure.
4. Final window-standard language and DRB approval.
5. Whether glass recycling will continue beyond the current fiscal year.
6. Any future construction or installation of community EV charging infrastructure.

Consolidated Board Follow-Up List

Delinquencies / Legal

- Review foreclosure memorandum and make a Board decision on whether to proceed.
- Revise and shorten delinquency procedure.
- Incorporate Debra's comments.
- Obtain copies of management company's 31-day notices.
- Send remaining certified delinquency notices.
- Track 60-day/15-day deadlines consistently.
- Analyze financial/cash-flow impact of delinquencies.
- Contact RA regarding collection resources or guidance.
- Continue exploring alternative collection counsel/resources.
- Develop proposed bylaw amendment and obtain legal review.
- Establish clearer attorney reporting expectations.

Communications

- Distribute trash-date-change flyers.
- Post trash change on Facebook.
- Distribute glass recycling instructions.
- Distribute Ice Cream Social flyer.
- Investigate HubSpot delivery issues.
- Provide safe-sender guidance to residents.

Projects

- Follow up on County drainage/erosion assistance and required application.
- Await EV feasibility report.
- Complete RA review of window standards and circulate to homeowners.
- Obtain Adam's bamboo plan and organize September containment workday.
- Enroll Cluster in animal-control program and notify residents.

Finance

- Complete auditor/accounting treatment of annuity proceeds and deferred tax liability.
- Review budget-deviation authority related to glass recycling.
- Evaluate glass recycling during FY27 budget preparation before deciding whether to continue it.
- Continue monitoring invoices against vendor contract terms.